

24STCV16797 24STCV16797

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 24STCV16797 Hearing Date: July 21, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 21, 2026

CASE NUMBER

25STCV16797

MOTIONS

Motion to Compel Further Discovery Responses

MOVING PARTY

Plaintiff Sithirak Yin

OPPOSING PARTY

Defendant the Boeing Company

MOTION

Plaintiff Sithirak Yin ("Plaintiff") moves to compel further responses from Defendant the Boeing Company ("Defendant") to Requests for Production of Documents, set one, No. 76 ("RPD").

ANALYSIS

If the propounding party deems responses to requests for production of documents unsatisfactory, the propounding party may move to compel further responses. (Code Civ. Proc., § 2031.310.)

This is Plaintiff's second motion to compel further responses with respect to the RPD. In its January 20, 2026 order, the Court ordered Defendant to serve a further response to the RPD. (January 20, 2026 Minute Order.) Plaintiff moves to compel a further response to Defendant's further supplemental response, which is Defendant's fifth supplemental response to the RPD.

In response to the RPD, Defendant provided a response after objecting to the RPD individually and as a set, "leaving nothing to address in a motion to compel." (American Federation of State, County & Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269.) Because Defendant responded to the RPD, the Court cannot compel a further response on the basis Defendant also asserted objections. However, if Defendant withheld any responsive documents because of the attorney-client privilege and attorney work product, Plaintiff is entitled to a privilege log. The Court, therefore, grants the motion to compel further responses to the RPD as to Plaintiff's request for a privilege log. (See Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 291, fn. 6.)

Plaintiff also contends Defendant's response to the RPD is incomplete. Plaintiff cannot move to compel Defendant to further respond on the basis Plaintiff believes Defendant's responses are incomplete. (Holguin v. Superior Court (1972) 22 Cal.App.3d 812, 820.) Plaintiff's remedy is to offer Defendant's allegedly incomplete responses as admissions or as prior inconsistent statements to impeach Defendant at trial, if Defendant seeks to introduce evidence it did not disclose in discovery. (See Evid. Code, §§ 1220; 1235.) The Court finds Plaintiff filed this motion without substantial justification, such that sanctions are warranted. (Code Civ. Proc., § 2031.310, subd. (h).) Accordingly, the Court imposes sanctions against Plaintiff and Plaintiff's counsel of record, Kevin Gilliland, in the amount of \$1,444.50, which represents three hours to oppose Plaintiff's motion and attend the hearing at \$481.50 per hour. Plaintiff is to pay \$1,444.50 in sanctions to Defendant, by and through counsel, within 30 days of this order.

Plaintiff is ordered to give notice of the Court's ruling and to file proof of service of same.